

Court No. - 29

Case :- WRIT - C No. - 27035 of 2019

Petitioner :- Harihar Yadav

Respondent :- State Of U.P. And 5 Others

Counsel for Petitioner :- Ram Manohar Kashyap

Counsel for Respondent :- C.S.C.,Mahboob Ahmad

Hon'ble Pankaj Mithal,J.

Hon'ble Saral Srivastava,J.

Sri Ravi Anand, learned counsel for Vidyut Vitran Khand/Electricity Distribution Division is present but as counsel for the petitioner is not present, let the petition come up in the additional list on **18.09.2019**.

Order Date :- 12.9.2019

Nirmal Sinha

Court No. - 29

Case :- WRIT - C No. - 27035 of 2019

Petitioner :- Harihar Yadav

Respondent :- State Of U.P. And 5 Others

Counsel for Petitioner :- Ram Manohar Kashyap

Counsel for Respondent :- C.S.C.,Mahboob Ahmad

Hon'ble Pankaj Mithal,J.

Hon'ble Saral Srivastava,J.

As prayed, put up on 25.9.2019 in the additional list.

Order Date :- 18.9.2019

SKS

Court No. - 29

Case :- WRIT - C No. - 27035 of 2019

Petitioner :- Harihar Yadav

Respondent :- State Of U.P. And 5 Others

Counsel for Petitioner :- Ram Manohar Kashyap

Counsel for Respondent :- C.S.C.,Mahboob Ahmad

Hon'ble Pankaj Mithal,J.

Hon'ble Saral Srivastava,J.

On the request of the parties, put up tomorrow ie. 26.9.2019.

Order Date :- 25.9.2019

SKS

Court No. - 29

Case :- WRIT - C No. - 27035 of 2019

Petitioner :- Harihar Yadav

Respondent :- State Of U.P. And 5 Others

Counsel for Petitioner :- Ram Manohar Kashyap

Counsel for Respondent :- C.S.C.,Mahboob Ahmad

Hon'ble Pankaj Mithal,J.

Hon'ble Saral Srivastava,J.

On the request made on behalf of Sri Ravi Anand Agarwal,
learned counsel for the contesting respondent.

Put up tomorrow, i.e., on **27.9.2019.**

Order Date :- 26.9.2019

Ishan

Court No. - 29

Case :- WRIT - C No. - 27035 of 2019

Petitioner :- Harihar Yadav

Respondent :- State Of U.P. And 5 Others

Counsel for Petitioner :- Ram Manohar Kashyap

Counsel for Respondent :- C.S.C.,Mahboob Ahmad

Hon'ble Pankaj Mithal,J.

Hon'ble Saral Srivastava,J.

Heard Sri Ram Manohar Kashyap, learned counsel for the petitioner and Sri Ravi Anand, learned counsel appearing for the respondents No.3, 4 and 5.

The petitioner has been served with the recovery citation dated 09.05.2019 so as to recover the electricity dues to the tune of Rs.65,80,211/-.

The submission of learned counsel for the petitioner is that he had cleared all electricity dues upto the year 2014 and thereafter the rice mill has been closed and as such there cannot be any arrears of such a huge amount.

The correctness or the quantum of the electricity dues can always be questioned by the petitioner before the Executive Engineer concerned.

In view of the aforesaid facts and circumstances, we do not consider it to be a fit case for exercising discretionary jurisdiction and accordingly dismisses the writ petition with liberty to the petitioner to approach the Executive Engineer under Clause 6.5 of the U.P. Electricity Supply Code 2005.

The Writ Petition stands **dismissed**.

Order Date :- 27.9.2019

piyush